

HOUSE No. 110

The Commonwealth of Massachusetts

PRESENTED BY:

Jennifer Balinsky Armini and Kathleen R. LaNatra

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to lobstering closure mitigation.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>1/16/2025</i>
<i>Hadley Luddy</i>	<i>4th Barnstable</i>	<i>7/15/2025</i>
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	<i>7/15/2025</i>

HOUSE No. 110

By Representatives Armini of Marblehead and LaNatra of Kingston, a petition (accompanied by bill, House, No. 110) of Jennifer Balinsky Armini for legislation to provide financial assistance to lobstermen to mitigate the financial impacts of fishing area closures. Agriculture.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to lobstering closure mitigation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 130 of the general laws is hereby amended by adding the following
2 section:-

3 Section 37B. Lobstering Closure Mitigation Fund

4 (a) There shall be established and set up on the books of the Commonwealth, subject to
5 appropriation, a fund to be known as the Lobstering Closure Mitigation Fund to be administered
6 by the department of unemployment assistance.

7 (b) The purpose of the Fund shall be to provide financial assistance to lobstermen to
8 mitigate the financial impacts of fishing area closures due to protection of endangered marine
9 species as they work through the process of incorporation. For the purposes of this act, the term
10 “lobsterman” shall mean a holder of a commercial fisherman permit (lobster) as so appearing in
11 section 38 of this chapter that is deemed to be active and transferable by the director of marine
12 fisheries, and the term “trap” shall mean a lobster tag used to catch lobsters that is owned by and

13 licensed under and a lobsterman. Any lobsterman who is domiciled in Massachusetts shall be
14 eligible for weekly payments equal to one dollar per lobster trap tag per week. Eligibility for said
15 payments shall be available through January 1 and shall terminate on June 30 annually.

16 (c) There shall be credited to the Fund all amounts that are, by law, transferred or
17 authorized to be transferred thereto or directed to be deposited therein, and all amounts received
18 as gifts, grants, or contributions for the purposes of the Fund. Amounts credited to the Fund shall
19 not be subject to further appropriation and any money remaining in the Fund at the end of a fiscal
20 year shall revert to the General Fund.

21 (d) The director of the department shall report annually to the house and senate
22 committees on ways and means and the joint committee on agriculture on income received into
23 the fund and sources of that income, any expenditure from the fund and their purposes, and fund
24 balances.

25 (e) The department shall promulgate regulations as necessary to implement the provisions
26 of this section, including, but not limited to, regulations pertaining to payment application and
27 disbursement procedures.

28 SECTION 2. The Secretary of State shall promulgate regulations to determine progress
29 toward incorporation made by all recipients no later than January 1 annually.

30 (a) Lobstermen who are found to have not made sufficient progress toward
31 incorporation after their first year of receiving closure mitigation payments shall not be eligible
32 for further payments until such progress is made.

33 (b) The Secretary of State shall host an annual information session for lobstermen to
34 educate recipients on the incorporation process and provide resources to assist with
35 incorporation.

36 SECTION 3. 3 fiscal years after the effective date of this act, the Fund shall be dissolved.

37 SECTION 4. This act shall take effect immediately upon its passage.